

withdrawal is effective upon **Shaun J. Bauman's** filing the proof of service of signed order on the client and all parties.

12. 9:00 AM CASE NUMBER: C25-03681
CASE NAME: ROSSMOOR RETAIL PARTNERS, LLC VS. DELITHA HENSON
HEARING ON DEMURRER TO: ANSWER
FILED BY: ROSSMOOR RETAIL PARTNERS, LLC
TENTATIVE RULING:

VACATED BY FILING OF AMENDED ANSWER.

13. 9:00 AM CASE NUMBER: C25-03717
CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION
***HEARING ON MOTION IN RE: NTC AND MTN FOR STRIKING PORTIONS OF COMPLAINT**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a "Motion for Striking Portions of Complaint" (MTS) on March 23, 2026. She writes that she "denies generally and specifically, each and every allegation and cause of action set forth in the complaint. In addition, Plaintiff denies that defendant is entitled to relief sought in the complaint or any relief whatsoever, as against Plaintiff."

Plaintiff does not appear to be moving to strike anything in her Complaint. Plaintiff's MTS was filed two weeks after Defendant filed its Answer on March 9, 2026. It appears that Plaintiff repeats the allegations in the Answer and purports to respond to each of the affirmative defenses by asserting them as "affirmative defenses" of her own.

The motion makes no procedural sense and is unaccompanied by a memorandum of points and authorities. There is no logical or legal argument contained in the moving papers.

The MTS is **denied**.

14. 9:00 AM CASE NUMBER: C26-00155
CASE NAME: JANE DOE VS. DANTE WESTBROOK
***HEARING ON MOTION IN RE: QUASH SERVICE**
FILED BY: WESTBROOK, DANTE
TENTATIVE RULING:

The hearing on this matter is continued until Friday, July 17, 2026, at 9:00 a.m.

15. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
STRIKE COMPLAINT
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi's Special Motion to Strike Complaint (Anti-SLAPP)(Code Civil Proc. § 425.16)

The hearing is **continued until August 21, 2026**, as set forth below.

Procedural Background

Plaintiff Andrei Romanenko filed his complaint on January 20, 2026, for defamation and associated causes of action related to alleged false statements made about him by Defendant Kalnytskyi on various websites.

Defendant Kalnytskyi filed his Special Motion to Strike on March 11, 2026. Two days later, on March 13, 2026, Plaintiff sought and the Court entered a default against Defendant Kalnytskyi. On May 1, 2026, Defendant Kalnytskyi filed a motion to set aside the default. The hearing for that motion is set for September 18, 2026.

On May 5, 2026, Plaintiff sought and the Court entered a default against Defendant Akrian, Inc. A motion to set aside the Default against Akrian, Inc. was filed by Defendant Kalnytskyi on May 13, 2026. That hearing is also currently scheduled for September 18, 2026.

Analysis

Jurisdiction to Hear the Motion

As noted above, a default was entered against Defendant Kalnytskyi on March 13.

"The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (*Devlin v. Kearny Mesa Amc/Jeep/Renault* (1984) 155 Cal.App.3d 381, 385.)

"A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial or demand notice of subsequent proceedings." (*Id.* at 385-86 quoting *Brooks v. Nelson* (1928) 95 Cal.App. 144, 147-48.)

Once a default is entered, the Court loses "jurisdiction to do anything but enter the default and judgment." (*W.A. Rose Co. v. Municipal Court for Oakland-Piedmont Judicial Dist.* (1959) 176 Cal.App.2d 67, 72.)

Based on the above, the Court cannot rule on Defendant's Special Motion to Strike until the default is set aside – if that occurs. As such, the hearing on this matter shall

be continued until after the hearing on the motion to set aside Mr. Kalnytskyi's default.

Scheduling

Special motions to strike, *i.e.* anti-slapp motions, are to be heard on an expedited basis. (See Code Civ. Proc. § 425.16(f).) The motion to set aside is currently scheduled for September 18, 2026. The Court on its own motion will advance the hearing on the motion to set aside filed by Mr. Kalnytskyi to **August 14, 2026**. The hearing on the Special Motion to Strike will be continued until **August 21, 2026**. Plaintiff's opposition to the motion to set aside default is due August 3, 2026. Defendant's Reply, if any, is due on or before August 7, 2026.

Akrian, Inc.'s Motion

The Court notes that Defendant Akrian, Inc. is also currently in default and that a motion to set aside has been filed on its behalf. **The court notes that Defendant Akrian, Inc., must be represented in court by an attorney and Mr. Kalnutsyki cannot represent Akrian, Inc. in court.** As a matter of efficiency, the Court will also reschedule the hearing on the motion to set aside Akrian, Inc.'s default to **August 14, 2026**.

Conclusion

The hearing on this motion is continued as follows:

- The hearings on both Defendant Kalnytskyi and Defendant Akrian, Inc.'s motions to set aside default are advanced to **August 14, 2026**, at 9:00 a.m.
- Plaintiff's oppositions to the motions to set aside are due on or before August 3, 2026. Plaintiff may file a joint opposition if he so desires.
- Defendant's reply, if any, is due on or before August 7, 2026.
- The hearing on Defendant Kalnytskyi's Special Motion to Strike is continued until **August 21, 2026**.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Form Interrogatories, Set One and for